



Apple Authorized Training Center Agreement (Professional Applications)

This Apple Authorized Training Center Agreement ("Agreement") is entered into between Apple Computer, Inc., located at 1 Infinite Loop, Cupertino, CA 95014 ("Apple") and:

Company Name ("Training Center"): sihsa'tus | centro de entrenamiento
Address: División del Norte 925 Piso 2, Del Valle. Mexico City
City, State/Province, Postal Code: Ciudad de México, D.F.

1. Definitions.

When used in this Agreement, the following words have the meanings specified below:

A. "Agreement" means collectively this Apple Authorized Training Center Agreement, together with all amendments, additions, documents or materials incorporated by reference.

B. "Apple Course Material" means collectively the Instructor Material and Student Material, as defined below.

C. "Apple Marks" means trademarks, service marks, logos and product names owned by or licensed to Apple and used on and in connection with the Apple Course Material, a Training Class or Testing Service including the designation "Apple Authorized Training Center".

D. "Apple Portal Site" means the password protected Internet web site administered by Apple or its agent that provides Training Centers and Candidates access to Apple Tests and Testing System Software.

E. "Apple Test" means an Apple proprietary examination delivered at an Authorized Location from Apple's Portal Site and administered by a Training Center.

F. "Authorized Apple Test List" means the list of Apple Test(s) that the Training Center is authorized to administer under this Agreement.

G. "Authorized Training Class List" means the list of Apple Training Class(es) that the Training Center is authorized to provide under this Agreement.

H. "Apple Testing Material" means the Testing System Software, Apple Test and related information that is proprietary to Apple or licensed thereto, and which is accessed by or provided to a Training Center for the limited purpose of performing Testing Services at an Authorized Location.

I. "Authorized Location" means the location at which Apple authorizes a Training Center to provide Training Classes and Testing Services under this Agreement.

J. "Candidate" means an individual who registers with Training Center to take an Apple Test.

K. "Certified Trainer" means an individual certified by Apple to instruct Apple Course Material at a Training Class.

L. "Confidential Information" means confidential information disclosed by either party to the other, which is not generally available to others, including but not limited to any non-public information relating to the other party's research, development, proprietary technology, product and marketing plans, finances, personnel, business opportunities, and pricing, but does not include information that becomes public knowledge except to the extent made public in violation of this Agreement.

M. "Customers" means collectively Candidates and Students.

N. "Instructor Material" means Apple's proprietary course curriculum for use by a Certified Trainer to assist in instructing Students on the subject matter being taught during a Training Class.

O. "Student" means an individual who registers with a Training Center to attend a Training Class.

P. "Student Material" means Apple's proprietary course curriculum for use by Students to assist in learning about the subject matter being taught during a Training Class.

Q. "Territory" means the geographical region that the Training Center is authorized to conduct Training Classes and Testing Services on behalf of Apple, identified in Exhibit A.

R. "Testing Service Manual" means the most-current version of any documentation, in written form or on electronic media, supplied to a Training Center by Apple, which is either developed by Apple or third party suppliers which cover operations, testing service policies and procedures, security requirements or similar information that a Training Center must adhere to in performing Testing Services, including but not limited to the Apple Certification Exam Proctor Guide.

S. "Testing Services" means the scheduling, delivery, and proctoring of any and all Apple Tests offered and delivered to Candidates through the Training Center, and the performance of related activities and procedures incidental thereto as required by Apple.

T. "Testing System Software" means the data communications, testing systems and software that are proprietary to Apple or licensed to Apple by third party suppliers and all changes, enhancements, upgrades, improvements, and modifications thereto and derivative works thereof. Testing System Software includes all software and systems necessary to or used by Apple or third party suppliers to register Candidates, administer an Apple Test, processes results and communicate with Candidates.

U. "Training Center" means an entity authorized by Apple to provide Training Classes and Testing Services at an Authorized Location.

V. "Training Class" means a course of instruction in which a body of Students registered with a Training Center and led by a Certified Trainer are taught a subject matter with the use of Apple Course Materials at an Authorized Location.

W. "Policies and Practices" means policies, practices and programs that (i) govern Training Center's performance under this Agreement and its use of or activities under or with respect to any other Apple-provided resources and systems, (ii) are posted on the Apple sales web or other Apple web sites or otherwise provided to Training Center, and (iii) may be updated periodically by Apple at Apple's sole discretion.

2. Appointment. Apple appoints Training Center as a limited



and nonexclusive Apple Authorized Training Center for the delivery of Training Classes and Testing Services to Customers in accordance with the terms of this Agreement; and Training Center accepts this appointment.

3. Scope of Authorization.

A. Upon Apple's confirmation that Training Center has compliant Authorized Location(s) and available Certified Trainers, Training Center is authorized to deliver Training Classes and Testing Services, as authorized under this Agreement. Training Center will determine its own prices for delivery of a Training Class or an Apple Test.

B. Notwithstanding anything to the contrary, Apple reserves the right to add or remove a Training Center's Authorized Location, authorized Training Class or authorized Apple Test modify the scope of the Training Center's authorization under this Agreement at any time upon thirty (30) days prior written notice.

C. Notwithstanding anything to the contrary, Apple reserves the right to add, remove or modify the Policies and Practices at any time without notice. Training Center will have a commercially reasonable period of time to implement changes by Apple, not to exceed thirty (30) days.

D. Training Center will only use Apple Course Material or Apple Tests when delivering Training Classes or providing an examination in which the subject matter is related to a product that is proprietary to Apple. Training Center will not utilize used Student Material to deliver Training Classes.

E. Apple grants Training Center a non-exclusive, non-transferable, limited right to access and use the Testing System Software accessible through the Apple Portal Site for the sole purpose of delivering Testing Services in connection with an Apple Test to Candidates located at an Authorized Location.

4. Training Center's Obligations.

A. Training Center shall act at all times and conduct its activities in a professional and competent manner and maintain a high level of customer satisfaction. Without limitation, Training Center will: (i) adhere to all requirements of the Policies and Practices; (ii) communicate with Customers in a courteous and timely manner, providing information on and availability of Training Classes and Apple Tests; (iii) register Customers and provide administration services that among others enable the facilitation and confirmation of Customer's payment; (iv) acquire and keep current at all times an inventory of Apple Course Material or eligibility codes that is reasonably sufficient to meet Training Center's obligations under this Agreement; and (v) obtain all required certifications, registrations and licenses, and comply with all federal, state and local laws and regulations.

B. Training Center will maintain an Internet email address, that it will provide to Apple, and have Internet access at all times. Training Center will access Apple's channel web sites at least weekly to ascertain whether Apple has modified the Policies and Practices.

C. Training Center will notify Apple promptly in writing of any suspected intellectual property infringement or erroneous information contained in the Apple Course Materials or Apple Tests.

D. Training Center will pay all applicable sales or use taxes, duties and other imposts due on account of purchases made under this Agreement. Training Center will be responsible for the collection of all applicable sales tax and use taxes associated with the resale of Apple Tests or provision of Training Classes.

5. Apple Tests and Training Classes.

A. Apple Tests

Training Center is authorized to deliver the Apple Tests listed in the Authorized Apple Test List. An Apple Test is accessed through the Apple Portal Site following the procedures set out in the Testing Service Manual. The delivery of an Apple Test requires the use of an eligibility code, which is issued by Apple upon request. Testing System Software notifies Apple when an eligibility code is used that enables Apple to issue an invoice to Training Center for the Apple Test delivered. Payment for delivery of Apple Tests is due no later than thirty (30) days from the date of Apple's invoice. The price for each Apple Test is set forth on the Authorized Apple Test List on the date the Apple Test is delivered. Apple reserves the right to change the price for an Apple Test at any time upon thirty (30) days prior written notice. Apple reserves the right to change Training Center's credit terms at any time without notice.

B. Training Classes

Training Center is authorized to deliver Training Classes listed in the Authorized Training Class List. Apple will provide access to a set of Instructor Materials to Training Center to be used exclusively to instruct the Training Class. Training Center is responsible for acquiring a set of Student Materials for each Student registered for a Training Class held at an Authorized Location. It is Training Center's duty to ensure that each attending Student use only the Student Material corresponding to the Training Class set forth in the Authorized Training Class List.

6. **Confidentiality.** Neither party will use the other's Confidential Information except as required to achieve the objectives of this Agreement, or disclose such Confidential Information except to employees, agents or contractors who have a need to know or as required by law. Neither party will make any disclosure or statement of Confidential Information in connection with this Agreement or its subject matter without the other's prior written consent or as required by law.

7. Limited Warranty.

A. Apple warrants to Training Center that Apple Tests and Instructor Materials conform to their general descriptions and are in good condition. These warranties are nontransferable. Training Center's sole and exclusive remedy for any breach of this warranty is replacement of the item upon return to Apple of the nonconforming item, if applicable.

B. APPLE MAKES NO OTHER WARRANTY TO TRAINING CENTER, EITHER EXPRESS OR IMPLIED, WITH RESPECT TO ANY ITEMS PROVIDED BY APPLE UNDER THIS AGREEMENT. APPLE SPECIFICALLY DISCLAIMS THE IMPLIED WARRANTIES OF MERCHANTABILITY AND FITNESS FOR A PARTICULAR PURPOSE.

8. Records, Inspections, and Reporting.

A. Unless otherwise instructed by Apple, Training Center will report to Apple on a monthly basis the number of Students enrolled in Training Class, the type and number of Training Classes held by Training Center, and any other information reasonably related to the provision of Training Classes or Testing Services, as requested by Apple. Apple will have the right to inspect Training Center's Authorized Locations and related facilities at any time during regular business hours for purposes of verifying Training Center's compliance with the terms of this Agreement.

B. Training Center will maintain, at the applicable Authorized Location, its records relating to the delivery of Apple Tests and Training Classes for at least five (5) years from the date of this Agreement. Upon Apple's reasonable request, during the term of this Agreement and for five (5) years after its expiration or termination, Training Center will promptly provide copies of any requested records, financial statements and documents to



Apple.

C. Training Center will provide Apple with resale certificate numbers and any other documentation requested by taxing authorities to substantiate any claim of exemption from taxes, duties, or imposts.

9. Proprietary Marks.

A. Apple Marks

Training Center is permitted to use the Apple Marks and the designation "Apple Authorized Training Center" in furtherance of Training Center's appointment, provided that all such use complies with Apple's policies (including Apple's Guidelines for Using Apple Trademarks and Copyrights as published on Apple's web site at <http://www.apple.com/legal/guidelinesfor3rdparties.html>) as updated from time to time. This Agreement does not grant to Training Center any rights with respect to any other Apple intellectual property, including trade dress, design (and particularly the design of Apple's retail stores and web sites), and look and feel, and Apple reserves all rights to the exclusive use of its intellectual property. Other than specifically authorized by this Agreement or another agreement between Training Center and Apple, Training Center will not do anything that suggests Apple's endorsement or recommendation or otherwise creates an association with Apple. Training Center agrees that Apple owns all rights in the Apple Marks, and that any use by Training Center shall inure to the benefit of Apple. Except as expressly permitted hereunder, Training Center agrees not to use any Apple trademark, service mark, logo, trade dress, design, "look and feel" (e.g., the design and layout of Apple's retail stores or websites, or the name under which Training Center does business) in any manner whatsoever, or act in any manner that implies an endorsement of Training Center by Apple. Training Center will not remove, obfuscate or add any mark to any Apple Course Material provided by.

B. Training Center Publications

All course catalogues, promotion publications and other materials promoting Training Classes offered by the Training Center must be reviewed and approved by Apple in writing before publication to ensure Apple's third party guidelines on Trademark use are being met. Apple will use reasonable efforts to approve publications within a commercially reasonable period of time not to exceed thirty (30) days. Apple shall consider requests from Training Center for "template approval" such that standard layout and design of Training Center's course catalogues, promotion publications and other materials can be approved in advance. Such template approval requests will only be approved on the condition that Training Center ensures that it always refers to and complies with the latest version of Apple's third party guidelines on Trademark use prior to re-using any pre-approved template, and that the templates are submitted to Apple for reassessment no less than once every six (6) months.

C. Instructor Materials and Apple Tests

Training Center acknowledges and agrees that the Instructor Materials and Apple Tests are proprietary to Apple and that Apple retains all rights, title, and interest, in so far as it has right thereto. Training Center agrees that this Agreement does not grant Training Center any title or other right of ownership to the Instructor Materials or Apple Tests, or any title, license or other right of ownership to any Apple trademark. In providing copies of the Instructor Materials or Apple Tests, Apple grants to the Training Center a personal, non-exclusive, limited right to distribute single copies of the Instructor Materials and Apple Tests to each Certified Trainer, in whole and not separately, for instructing Training Classes at Authorized Locations. Training Center will not disassemble, copy, modify, create derivative works, or otherwise change the Instructor Materials or Apple Tests.

D. Apple Proprietary Customer Information

Training Center acknowledges that (i) Apple maintains customer information independently derived from numerous sources other than Training Center, including product registration and use of Apple's websites by customers and prospective customers; (ii) such customer information may be identical to information that Training Center has developed or maintains; and (iii) Apple has a proprietary interest in such customer information when derived from sources other than Training Center, whether or not Training Center has derived or maintains identical information. Training Center disclaims any interest whatsoever in Apple's proprietary customer information.

10. **Insurance.** For each Authorized Location, Training Center will have adequate and prudent coverage, which may include a general liability insurance policy, including coverage for premises liability, products, and completed operations. A Certificate of Insurance will be made available to Apple at its request.

11. Indemnity.

A. Training Center will defend, hold harmless and indemnify Apple against any claim or threat of claim brought by a third party against Apple arising out of the acts or omissions of Training Center, its employees or agents, excluding acts or omissions expressly required or prescribed by Apple under this Agreement.

B. If Apple seeks indemnification provided for in this Section, Apple will cooperate with and provide reasonable assistance in the defense or settlement of any claim or legal proceeding. Training Center and Apple will not make public any terms, or the mere existence, of any settlements.

12. **Limitation of Liability and Remedies.** TO THE MAXIMUM EXTENT PERMITTED BY LAW, IN NO EVENT, WHETHER AS A RESULT OF BREACH OF CONTRACT, WARRANTY, TORT, STRICT LIABILITY, STATUTE OR OTHERWISE, SHALL EITHER PARTY BE LIABLE TO THE OTHER FOR ANY SPECIAL, CONSEQUENTIAL, INCIDENTAL, OR INDIRECT DAMAGES (INCLUDING LOST BUSINESS PROFITS, LOSS OF DATA, INTERRUPTION OF USE, OR UNAVAILABILITY OF DATA) OR FOR PUNITIVE OR EXEMPLARY DAMAGES. The limitation in the preceding sentence shall not apply to (i) indemnity claims under Section 11, or (ii) any claims by Apple against Training Center for violation of intellectual property rights. The remedies set forth in this Agreement will be Training Center's sole and exclusive remedies for any claim against Apple under or related to this Agreement. Training Center waives and relinquishes any rights or claims under franchise, dealership, or other statutes, or at common law, that would or might arise out of Apple's termination of this Agreement or Apple's refusal to renew or extend the term of this Agreement.

13. Term and Termination.

A. Term

Unless terminated earlier as provided in this Agreement, the initial term of this Agreement will be for one (1) year from its Effective Date, unless Apple provides written notice to the Training Center that the Agreement will be renewed for an additional one (1) year period within thirty (30) days before the expiration of any term.

B. Termination

This Agreement may be terminated as follows: (i) either party may terminate this Agreement at any time, with or without cause, on thirty (30) days prior written notice to the other party; and (ii) Apple may terminate this Agreement immediately and without any period to remedy if: (a) Training Center fails to fully perform any obligation under this Agreement or violates any practices or procedures set forth herein, (b) Training Center



commits a criminal offence or engages in any unlawful or unfair business practice, (c) there is a material change in or transfer of Training Center's management, ownership, control, business operations, or Training Center becomes affiliated, through common management, ownership, or control, with any person who or entity that is unacceptable to Apple, (d) Training Center's actions expose or threaten to expose Apple to any liability, obligation, or violation of law, (e) Training Center fails to maintain sufficient net worth and working capital to meet its obligations, has a receiver or trustee appointed for its property, becomes insolvent or makes an assignment for the benefit of creditors, (f) Training Center closes its last Authorized Location or terminates its last Certified Trainer, or (g) Training Center abandons this Agreement.

C. Effect of Notice of Termination

If either party gives notice of termination of this Agreement according to Section 13B(i): (i) all unpaid Apple invoices will become due on the effective date of termination; and (ii) Apple may refuse all or part of Training Center's orders received by Apple after the date of notice of termination. Training Center may continue to use the designation "Apple Authorized Training Center" until the effective date of termination. In addition, if termination is in accordance with Section 13B(ii), all unpaid Apple invoices will become due on the effective date of termination.

D. Effect of Expiration or Termination

Upon expiration or termination of this Agreement: (i) Training Center will immediately cease use of the Apple Marks and the designation "Apple Authorized Training Center"; (ii) Apple will cancel all eligibility codes issued to Training Center; (iii) Training Center will complete all Training Classes in progress; and (iv) Training Center will return promptly to Apple all Apple property in Training Center's possession, such as loaned equipment and all Apple Confidential Information.

14. General Terms.

A. Governing Law; Venue; Limitation of Claims

This Agreement will be governed and interpreted under the laws of California, U.S.A., without regard to its conflict of laws provisions. In the event of any dispute or controversy between the parties to this Agreement, the parties shall try to resolve the dispute in a fair and reasonable way. To that end, the parties shall first attempt to resolve such dispute or controversy through one senior management member of each party. If the parties' senior management members are unable to resolve such dispute or controversy within sixty (60) days after the complaining party's written notice (a "Dispute Notice") to the other party of such dispute or controversy, the parties shall further seek to resolve the dispute or controversy pursuant to non-binding mediation conducted in either Santa Clara County or San Francisco County, California. Any dispute resolution shall be conducted in the English language. Each party shall bear its own expenses in connection with the mediation, except that Apple shall pay the fees and expenses of the mediator. If the parties are unable to resolve the dispute or controversy within sixty (60) days after commencing mediation, either party may commence litigation in the state or federal courts in Santa Clara County, California (but only such courts). Notwithstanding the foregoing, each party shall have the right to seek equitable relief in order to protect any rights to confidentiality or intellectual property. The parties hereby waive any bond requirements for obtaining equitable relief. To the extent permitted by law, EACH PARTY HERETO HEREBY IRREVOCABLY WAIVES ALL RIGHT OF TRIAL BY JURY IN ANY ACTION, PROCEEDING OR COUNTERCLAIM (WHETHER OR NOT RELATING TO OR ARISING OUT OF WITH THIS AGREEMENT). ANY LITIGATION ARISING OUT OF ANY DISPUTE OR CONTROVERSY BETWEEN THE PARTIES TO THIS AGREEMENT MUST BE BROUGHT WITHIN ONE (1) YEAR FROM THE FIRST DATE SUCH ACTION COULD HAVE BEEN BROUGHT. IF A LONGER PERIOD IS

PROVIDED BY STATUTE, THE PARTIES HEREBY EXPRESSLY WAIVE IT. IF A LONGER PERIOD IS PROVIDED BY STATUTE, THE PARTIES HEREBY EXPRESSLY WAIVE IT.

B. Notice

Any notice under this Agreement, except as expressly provided otherwise, must be in writing and will be deemed given upon the earlier of actual receipt or ten (10) days after being sent by first class mail, return receipt requested, to the address set forth below for Apple and to the address designated on page one (1) of this Agreement by Training Center for receipt of notices, or as may be provided by the parties.

Apple Computer, Inc.
Sales Contracts Management
1 Infinite Loop, Mail Stop 38-2CM
Cupertino, CA 95014

Either party may give notice of its change of address for receipt of notices by giving notice in accordance with this section. Written notice shall include notice provided via electronic email.

C. Privacy

Training Center acknowledges that in performing Testing Services and delivering Training Classes under this Agreement Training Center will gather, transfer, process, and use the personal data of Customers. Such personal data may include the name, address, telephone number, and electronic mail address of Customers. Training Center warrants that any data transferred for use has been collected and transferred to Apple or its agent in accordance with the data protection laws applicable in the country in which the Customer is based, including if appropriate, notice prior to or at registration that personally identifiable information may be shared with other third parties for evaluation, marketing and administration purposes. Training Center shall take appropriate legal, organizational, and technical measures to ensure the confidentiality of personal data in accordance with applicable law.

D. Severability

If a court of competent jurisdiction holds that any provision of this Agreement is invalid or unenforceable, the remaining portions of this Agreement will remain in full force and effect, and the parties will replace the invalid or unenforceable provision with a valid and enforceable provision that achieves the original intent of the parties and economic effect of the Agreement.

E. Headings and Construction

Paragraph headings are for reference only and will not be considered as parts of this Agreement. Wherever the singular is used, it includes the plural, and, wherever the plural is used, it includes the singular.

F. Waivers

A party's waiver of any breach by the other party or failure to enforce a remedy will not be considered a waiver of subsequent breaches of the same or of a different kind.

G. Assignments and Other Material Business Changes

Training Center will notify Apple promptly if there is a material change in Training Center's ownership, management, or control; or Training Center acquires an ownership, managerial or controlling interest in a third party that provides training services or training classes. Training Center may not assign, in whole or in part, this Agreement without Apple's prior written approval.

H. Relationship of Parties

Training Center is an independent contractor, has no power or



authority to bind Apple, and is contracting for certain goods and services. Nothing in this Agreement will be construed as creating any relationship such as employer-employee, principal-agent or franchisor-franchisee. Training Center acknowledges that Apple can provide Apple Course Materials directly to any person, including Training Center's customers.

I. Entire Agreement

Apple and Training Center acknowledge that this Agreement supersedes and extinguishes all previous agreements and representations of, between or on behalf of the parties with respect to its subject matter. This Agreement contains all of Apple's and Training Center's agreements, warranties, understandings, conditions, covenants, and representations with respect to its subject matter. In the event of a conflict between the terms and conditions of this Agreement and the terms and conditions contained in an exhibit, the terms and conditions of this Agreement shall prevail. Neither Apple nor Training Center will be liable for any agreements, warranties, understandings, conditions, covenants, or representations not

expressly set forth or referenced in this Agreement. Apple is deemed to have refused any different or additional provisions in purchase orders, invoices or similar documents, unless Apple affirmatively accepts such provisions in writing, and such refused provisions will be unenforceable. The parties agree that this Agreement and all related documents and correspondence shall be in the English language.

J. Modifications

Except as otherwise provided in this Agreement, no modification to this Agreement will be binding unless in writing and signed by an authorized representative of each party.

K. Counterparts

This Agreement may be executed in one or more counterparts (including by facsimile), each of which when so executed shall be deemed to be an original and shall have the same force and effect as an original but such counterparts together shall constitute one and the same instrument.

The duly authorized representatives of the parties execute this Agreement as of the dates set forth below.

SIGNATURE:

PRINT NAME: Luis Alberto López Ruiz

TITLE: Owner / Training Manager

DATE: July 5th 2006

Apple Computer, Inc.

SIGNATURE:

PRINT NAME: Stephen Glaros

TITLE: Sr Contracts Program Manager

DEPT: Sales Contracts Management

EFFECTIVE DATE:

7/21/06



Exhibit A
Authorized Locations

I. Authorized Locations

Apple Test and Training Classes must be held at Authorized Locations that meet Apple's Classroom Equipment and Setup Requirements as defined in Exhibit D of this Agreement. Additionally, all Authorized Locations may be inspected and approved of by Apple prior to Training Services and Apple Tests being delivered. Apple approves the following locations as Authorized Locations:

Territory: _____

Name of Location	Address	Telephone	Primary Contact/Email	Number of Classrooms
sihsatus centro de entrenamiento	Ave. División del Norte 925 Piso 2 Col. Del Valle, Mexico D.F.	(55)5543-6052	Alberto López Ruiz alberto@sihsatus.com	1

II. Minimum Number of Training Classes.

Unless otherwise approve by Apple, Training Center must deliver a minimum of two (2) Training Classes per month, as described under the Authorized Training Class List.

III. Minimum Number of Apple Tests.

Pursuant to Exhibit B, Section IV (Apple Tests), and unless otherwise approved by Apple Training Center must deliver one (1) Apple Test for each Training Class held per month.

IV. Cancellation Policy.

- A. If written notice of cancellation is received at least (i) 14 days in advance of the class, the Customer is entitled to a full refund, (ii) 7 days in advance of the class, the Customer is entitled to a full class credit which must be used within 6 months of the date of the original class to another class offered by Training Center. Customer is not entitled to a refund or class credit if less than 7 days advance written notice is given. Failure to provide written notice at least 14 days in advance of the class obligates the Customer to pay the full price of the class.
- B. Training Center reserves the right to amend or cancel the date, time and location of a training class at any time, including replacing personnel who may be scheduled to deliver the class. In the event a training class is cancelled by the Training Center, the Customer is entitled to a full refund. Training Center shall not be responsible for any other loss incurred by Customer as a result of a cancellation or amendment.



Exhibit B
Policies and Practices

I. General Requirements

- A. **Training Classes.** In connection with training classes that involve Apple's professional application products as its subject matter, the Training Center is permitted to deliver only the Training Classes described under the Authorized Training Class List.
- B. **Authorized Locations.** All Training Classes must be held at Authorized Locations. Additionally, Apple reserves the right to inspect all Training Center locations, prior to authorization or anytime thereafter to confirm that the location complies with the requirements. Upon submission of a completed application form, the Training Center may request that additional locations be authorized under this Agreement. Based on the location's compliance with the requirements and any inspection performed by Apple, if any, Apple will determine in its sole discretion whether the location is authorized.
- C. **Classroom.** Each Training Class must be held in a classroom located within an Authorized Location that meets or exceeds the requirements described in the Classroom Equipment and Setup Requirements.
- D. **Maximize Class Size.** Apple may specify a maximum number of Students who may attend a Training Class, and the Training Center agrees not to allow the number of Students attending the Training Class to exceed the stated maximum number. The current maximum number is twenty (20) Students.
- E. **Certified Trainers.** Unless otherwise agreed to by Apple, only employees or authorized independent consultants of the Training Center who are Certified Trainers are permitted to deliver Training Classes under this Agreement. Details on Apple's Certified Trainer Program for Pro Products are currently available at: http://www.apple.com/software/pro/training/cert_tpro.html. Certified Trainers may not deliver Training Classes for which they are not certified.
- F. **Student: Instructor Ratio.** Training Center agrees to maintain a ratio of 10:1 Student to Instructor at all times. Any number over 10 requires one (1) additional Certified Trainer or one (1) additional Teaching Assistant to be present for each five (5) additional Students.
- G. **Software.** Training Center will provide the appropriate software to run each Training Class, as specified in the Classroom Equipment and Setup Requirements and shall purchase as required valid software licenses from Apple or any third party vendor for all computer systems used by Certified Trainers and Students participating in the Training Class, including updates that may be required. Any software that is proprietary to Apple ("Apple Software") that is purchased or leased for the approved facility shall be used only by the Training Center or Students enrolled in the Training Class. Existing Apple Software licenses for the Authorized Locations may be used so long as each Student and Certified Trainer station is individually licensed and the version complies with the Classroom Equipment and Setup Requirements. Training Center agrees to comply with all licensing terms of the software.
- H. **Minimum Number of Training Classes and Apple Tests.** Under its Agreement with Apple, Training Center may be required to deliver a minimum number of Training Classes and minimum number of Apple Tests, and Training Center agrees to comply with this requirement.
- I. **Reporting of Training Classes.** Every thirty (30) days, or as otherwise requested by Apple, Training Center shall provide to Apple a report detailing in the previous 30 days: the number of Training Classes held, the number of Training Classes cancelled, the number of Students who attended the Training Classes. These reports will be submitted through an online reporting system as specified by Apple.
- J. **Forecasting Demand.** Training Center will provide to Apple at the end of each month a forecast of how many Training Classes they plan to hold in the upcoming month and how many Students they anticipate training. These reports will be submitted through an online reporting system.

II. Method of Instruction

- A. It is the responsibility of Training Center to make reasonable efforts to make Students aware of the copyright notice contained within the Student Materials.
- B. The Training Center agrees that the method of delivery and technical discussions of the Training Classes shall be based on those demonstrated to Certified Trainers during the Apple Certified Trainer program. Class discussions and laboratory exercises will be consistent with those defined in the Apple Course Materials.
- C. All Student Materials used in the Training Class must be from the Apple Pro Training Series published by Peachpit Press.

III. Administrative Procedures. The Training Center must provide Apple Pro Training Program management with the name, email and phone number for the following contacts:

- A. Accounts Payable/ Accounts Receivable
- B. Apple Certified Desktop Technician
- C. Marketing Manager
- D. Training Manager
- E. Apple Certified Trainer

IV. Apple Tests. Training Center agrees to offer Apple Tests to all Students attending Training Classes that have a corresponding test. Training Center agrees to offer Apple Tests Level One to those interested in taking an examination without taking a Training Class in a timely manner. Training Center also agrees to verify Apple Test Level One certification for Students registering to attend a Training Class Level Two or corresponding Apple Test. All Students registering for Training Class or Apple Test Level Two must be certified at Apple Test Level One. Training Center agrees to offer an Apple Test Level Two with each corresponding Training Class Level Two.

V. Discounts and Promotions. Training Center agrees to offer Apple authorized resellers and Apple employees a twenty five percent (25%) discount on the commercial price offered for its Training Classes. Training Center also agrees to make two (2) Training Class seats per Training Center per quarter available for Apple's use, at its discretion, provided that the cost of using the seats is incremental to the Training Center, i.e. the use of the seats does not incur significant additional costs such as the hiring of an additional Certified Trainer or Teaching Assistant. The parties will agree on the provision of Student Materials for the use of the seats.



From time to time, Apple may present to Training Center promotions on Training Classes used as a tool to market Training Centers, and Training Center agrees to consider its participation in such promotions on a case by case basis.

VI. Website. Training Center must maintain a website with current information regarding Training Classes and Apple Tests, including approved descriptions, schedules and pricing. The website must allow a Student to register online or direct the Customer to a phone number of a training sales representative who can enroll the Customer in the Training Class or Apple Test. Apple Authorized Training Center must be displayed on all websites.

VII. Performance of Training Center

- A. **Evaluation Forms.** On the last day of each Training Class, Training Center agrees to have Students complete an Apple online evaluation form, at the following web page: https://fcptrain.apple.com/course_evaluation/. In the event the online evaluation form is not accessible, the Students must complete a printed version of the evaluation form.
- B. **Monitor Performance.** Following receipt of the class evaluation forms, Apple will review the forms for quality assurance purposes. If any Certified Trainer receives an overall score for a Training Class that is less than the Quality Assurance Threshold of 4.25, Apple may make inquiries about the Certified Trainer and the Training Class taught and take action, as described in the Quality Assurance Remedies described below, in its sole discretion.
- C. **Location Visits.** In its sole discretion, Apple or its agents may make unannounced visits to the approved facility and be in attendance at a Training Class to monitor the performance of the Certified Trainer, including but not limited to the professionalism and technical knowledge of the Certified Trainer, organization of the Training Center, and the timeliness associated with the delivery of the Training Class. Attendance of Apple at such Training Class shall be at no charge, provided that such attendance is limited to two persons per Training Class, once per quarter at each Authorized Location and the cost of using the seats is incremental to the Training Center.
- D. **Quality Assurance Remedies.** In the event that Training Center is not performing Training Classes in a manner consistent with the provisions of this Agreement, Apple may request that the situation be cured. Upon receipt of such notice, Training Center and Apple will jointly develop and implement within thirty (30) days an action plan to remedy the situation. If the situation is not corrected within a total of forty-five (45) days after notification of the problem, or within a reasonable length of time as dictated by the agreed-upon action plan, Apple may after reasonable consultation with Training Center, direct Training Center to take additional corrective action. If a replacement Certified Trainer is required, Training Center shall bear the costs associated with replacing a Certified Trainer. If problems persist beyond an additional remedial action time limit of forty-five (45) days, Apple reserves the right to terminate this Agreement immediately. This right to terminate is in addition to any other rights Apple may have under this Agreement.

VIII. Course Cancellation. Apple and Training Center agree that the Training Center's course cancellation policy will be substantially in accordance with the Cancellation Policy described in its Agreement.

IX. Student Registration

- A. **Registration.** Apple and the Training Center agree that throughout the term of the Agreement Training Center is responsible for registering Students seeking enrollment in Training Classes delivered by Training Center. Training Center is responsible for administering its cancellation policy.
- B. **Customer Billings.** Apple and Training Center agree that Student billing for the Authorized Location will be handled by Training Center. Apple will not provide collection services for the Training Center. Training Center shall be responsible for handling all Training Center inquiries and complaints concerning billings, unless agreed otherwise in writing by both parties.
- C. **Completion Certificates.** The Certified Trainer must provide each Student who completes a Training Class with a Course Completion Certificate on the last day of the Training Class, which Course Completion Certificate must be in accordance with Apple's Corporate Identify Guidelines.

X. Marketing

- A. Training Center agrees to include descriptions of Training Classes that Training Center is authorized to deliver in its relevant training and promotional publications such as course catalogs websites, and various marketing material. Training Center agrees to publish marketing materials at a local or national level or refresh online marketing pages at least once a quarter to ensure that information is current and accurate.
- B. All course catalogs, promotional publications and other materials promoting Training Classes offered by the Training Center must be reviewed and approved by Apple in writing before publication to ensure Apple's third party guidelines on Trademark use are being met. Apple will use reasonable efforts to approve publications within a commercially reasonable period of time not to exceed thirty (30) days.
- C. Training Center shall bear the cost of its own marketing efforts.
- D. Must have Apple Authorized logo clearly displayed on their home training page.



Exhibit C
Authorized Training Class List

Training Class	Student Material	ISBN Number
FCP 100, FCP 101, FCP 200, FCP 350	Apple Pro Training Series: Final Cut Pro 5	0321334817
FCP 300	Apple Pro Training Series: Advanced Color Correction and Effects in Final Cut Pro 5	0321256085
FCP 250	Apple Pro Training Series: Advanced Editing Techniques in Final Cut Pro 5	032133549X
SHAKE 101	Apple Pro Training Series: Final Cut Pro for Avid Editors	0321166493
LOGIC 101	Apple Pro Training Series: Shake 4	0321256093
LOGIC 301	Apple Pro Training Series: Logic Pro 7 and Logic Express 7	032125614X
DVDSP 101, 301	Apple Pro Training Series: Advanced Logic Pro 7	0321256077
FCE 101	Apple Pro Training Series: DVD Studio Pro 4	0321334825
MOTION 101	Apple Pro Training Series: Final Cut Express 2	0321256158
SOUNDTRACK PRO 101	Apple Pro Training Series: Motion	0321278267
COLOR 101	Apple Pro Training Series: Soundtrack Pro	0321334825
	Apple Pro Training Series: Color Management in OS X	0321245768

All Student Material used in Training Classes must be from the Apple Pro Training Series published by Peachpit Press. The courseware is available through various retail channels.

Authorized Apple Test List

Associated Training Class	Apple Test	Price (\$) U.S.
FCP 101, FCP 200	Apple Certified End User - FCP, Level 1	50
FCP 300	Apple Certified End User - FCP, Level 2	50
FCP 350	Apple Certified End User - FCP, Level 3	50
Shake 101	Apple Certified End User - Shake	50
Logic 101	Apple Certified End User - Logic Pro, Level 1	50
Logic 301	Apple Certified End User - Logic Pro, Level 2	50
DVDSP 101	Apple Certified End User - DVD Studio Pro, Level 1	50
DVDSP 301	Apple Certified End User - DVD Studio Pro, Level 2	50
Motion 101	Apple Certified End User - Motion	50
COLOR 101	Apple Certified End User - Color Management	50



Exhibit D
Classroom Equipment and Setup Requirements

Pro Applications Training

Equipment	Trainer & Student Systems
Display	Any displays allowed that provide adequate resolution
System-Client-Min. Req.	For All Classes: Power Mac G4, PowerBook G4, PowerMac G5, eMac For Motion Classes: Power Mac G5 with ATI Radeon 9800 video card or better
Software	Mac OS X v10.3 or later Client, most current versions for applicable Training Class - Final Cut Pro HD, DVD Studio Pro, Shake, Logic Pro, Motion
Memory	For All Classes: 512 MB For Motion Classes: 1GB
MHz	800 Mhz
Hard Drive	60 GB, Super Drive
Other	Projection System with an LCD panel resolution of 1024X768; Airport Base Station and Airport Cards in each machine
Workstation : Student	One workstation per student (max.)

Classroom	
Network	Classroom systems should be networked together using a 10 MB Ethernet network or better Classroom network should be isolated from other company networks and should not affect any other network should it fail.
Electrical	Classroom systems should have access to the internet for certification exams. Power outlets should be provided for all computers, monitors, and peripheral devices used in the classroom.
Facility	Classroom should hold at least 6 students, but no more than 17 Lighting and room temperature controls should be easily accessible by the trainer A wall-mounted or free standing white board is advisable
Furniture	Armchairs with padded seats are recommended Computer tables should be at least 5' X 2.5' in order to accommodate up to two students and two computers per table
Other	The classroom should meet local health and fire codes Phones and bathroom facilities should be easily accessible